

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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AKEEM WALKER,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentPOLICE OFFICER THEODORE PETERS, Shield No.
13285, SERGEANT ALI JAVED, Tax No. 947780,
SERGEANT CUEVAS, Tax No. 941608, and POLICE
OFFICER AZIZB, Shield No. 16004,Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Amended Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 8, 2018

Yours, etc.

/s/JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER THEODORE PETERS, Shield No. 13285, PSA 2, 560 Sutter Ave,
Brooklyn, NY 11207
SERGEANT ALI JAVED, Tax No. 947780, PSA 2, 560 Sutter Ave, Brooklyn, NY
11207
SERGEANT CUEVAS, Tax No. 941608, PSA 2, 560 Sutter Ave, Brooklyn, NY 11207
POLICE OFFICER AZIZB, Shield No. 16004, PSA 2, 560 Sutter Ave, Brooklyn, NY
11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
AKEEM WALKER,

Plaintiff,

-against-

INDEX NO.:VERIFIED
COMPLAINTPOLICE OFFICER THEODORE PETERS, Shield No.
13285, SERGEANT ALI JAVED, Tax No. 947780,
SERGEANT CUEVAS, Tax No. 941608, and POLICE
OFFICER AZIZB, Shield No. 16004,**JURY TRIAL DEMANDED**Defendants.
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Plaintiff AKEEM WALKER, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On November 13, 2015, at approximately 6:00 a.m., inside of 335 Sutter Avenue, Apt. 11F, Brooklyn, New York, the defendant police officers unlawfully entered plaintiff's apartment without a search warrant, illegally seized, falsely imprisoned, falsely arrested plaintiff without cause or justification, by, among things. Thereafter, Plaintiff was maliciously prosecuted, and denied the right to a fair trial. Those officers that did not touch Plaintiff failed to intervene and protect him from being illegally seized, maliciously prosecuted, and denied the right to a fair trial. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, and used excessive force against plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Akeem Walker is a resident of the State of New York.

3. POLICE OFFICER THEODORE PETERS, Shield No. 13285, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER THEODORE PETERS, Shield No. 13285, is and was at all times relevant herein assigned to PSA 2 precinct.

5. POLICE OFFICER THEODORE PETERS, Shield No. 13285 is being sued in his individual and official capacity.

6. SERGEANT ALI JAVED, Tax No. 947780, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ALI JAVED, Tax No. 947780, is and was at all times relevant herein, was assigned to PSA 2 precinct.

8. SERGEANT ALI JAVED, Tax No. 947780 is being sued in his individual and official capacity.

9. SERGEANT CUEVAS, Tax No. 941608, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT CUEVAS, Tax No. 941608, is and was at all times relevant herein, was assigned to PSA 2 precinct.

11. SERGEANT CUEVAS, Tax No. 941608 is being sued in his individual and official capacity.

12. POLICE OFFICER AZIZB, Shield No. 16004, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER AZIZB, Shield No. 16004, is and was at all times relevant herein assigned to PSA 2 precinct.

14. POLICE OFFICER AZIZB, Shield No. 16004 is being sued in his individual and official capacity.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately

responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On November 13, 2015, at approximately 6:00 a.m., inside of 335 Sutter Avenue, Apt. 11F, Brooklyn, New York, the defendant police officers unlawfully entered Plaintiff's apartment without a search warrant, illegally seized, falsely imprisoned, falsely arrested plaintiff without probable cause or legal justification.

20. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

21. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

22. Nevertheless, plaintiff was unlawfully handcuffed and transported against his will to the PSA 2 Precinct where he was searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

23. Thereafter, after several hours in police custody at PSA 2, plaintiff was transported to the 73rd precinct where he was interrogated.

24. Plaintiff was held at the 73rd Precinct for approximately 2 hours and was then transported back to PSA 2.

25. On November 13, 2015, at approximately 7:00 p.m., plaintiff was transported to Brooklyn Central Booking.

26. The defendant police officers intentionally provided the Brooklyn District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes he did not commit.

27. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff

28. Plaintiff was unlawfully charged with Criminal Possession of a Weapon.

29. After approximately 36 hours in police custody, on November 14, 2015, plaintiff was arraigned in Kings County Criminal Court and was released on his own recognizance.

30. Thereafter, plaintiff was forced to appear in Court on approximately three occasions before the case was presented to the Grand Jury on November 25, 2015.

31. On November 25, 2015, the Grand Jury voted no true bill.

32. Thereafter, all charges against plaintiff were dismissed and sealed on December 3, 2015.

33. Some of the defendant police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment, false arrest, malicious prosecution, and denial of a fair trial against plaintiff.

34. The false arrest, false imprisonment, malicious prosecution, and denial of a fair trial against plaintiff by the individually named defendant police officers caused him to sustain severe physical, psychological and emotional trauma.

35. As a result of the unlawful arrest and prosecution, plaintiff was forced to miss approximately 4 days of work.

36. Further, as a result of the unlawful search of plaintiff's apartment, the defendant police officers caused property damage to plaintiff's property.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The unlawful search of plaintiff's apartment was conducted in violation of plaintiff's constitution rights and his rights pursuant to New York State law.

48. Defendants lacked probable cause to search plaintiff's apartment.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

53. Plaintiff repeats and realleges paragraphs 1 through 52 as if fully set forth herein.

54. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

55. Defendants commenced and continued a criminal proceeding against plaintiff.

56. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

57. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

58. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 60 with the same force and effect as if fully set forth herein.

62. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

63. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

64. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. In withholding/creating false evidence against plaintiff Akeem Walker, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

66. As a result of the foregoing, plaintiff Akeem Walker, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

71. Defendants failed to intervene to prevent the unlawful conduct described herein.

72. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

75. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Akeem Walker demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 8, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 8, 2018

/s/
STUART E. JACOBS